

Discovery Law & Motion

25. 9:01 AM CASE NUMBER: N23-0911
CASE NAME: VINCENT SARGENTINI VS. PATRICK CLARK
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION FROM RICHMOND ROD & GUN CLUB, SET ONE**
FILED BY: SARGENTINI, VINCENT
TENTATIVE RULING:

This matter is ordered off calendar and referred to the court-appointed discovery referee pursuant to the Order signed April 8, 2026.

Law & Motion
Add On

26. 9:00 AM CASE NUMBER: C24-00086
CASE NAME: EMIL MOUTON VS. ALLAN MENDIETA
HEARING ON MOTION TO STRIKE: 1ST AMENDED COMPLAINT
FILED BY: MENDIETA, ALLAN S.
TENTATIVE RULING:

Before the Court is a motion by defendant Allan Mendieta to strike plaintiffs' punitive damage allegations and prayer in the operative first amended complaint. For the reasons set forth, the motion to strike is **GRANTED IN ITS ENTIRETY**.

Background

Plaintiffs Emil Mouton and Elizabeth Kelly allege they were injured in a motor vehicle accident. The driver of the other vehicle was defendant Allan Mendieta. Plaintiffs sued Mr. Mendieta for the negligence (motor vehicle) and general negligence. The Court granted them leave to amend their original complaint to allege additional facts and attempt to state a basis for seeking punitive damages.

Mr. Mendieta has filed a motion to strike the punitive damages allegations and prayer for relief. Plaintiffs oppose the motion.

Procedural Objection – Late Filing

A motion to strike pursuant to Code of Civil Procedure sections 435 and 436 is subject to the same deadlines as a demurrer. Specifically, a motion to strike may be served and filed "within the time allowed to respond to a pleading." (Code Civ. Proc. § 435(b)(1).) (*See also* Cal. R. Ct., Rule 3.1322(b) ["A notice of motion to strike must be given within the time allowed to plead, and if a demurrer is interposed, concurrently therewith, and must be noticed for hearing and heard at the same time as

the demurrer."].) A responsive pleading was required to be filed within 30 days after service of the FAC, as extended for service by email, mail, or other means. (Code Civ. Proc. §§ 430.40(a), 1010.6 and 1013.)

Nevertheless, the Court has discretion to consider a late-filed demurrer. (*McAllister v. County of Monterey* (2007) 147 Cal.App.4th 253, 280; *Jackson v. Doe* (2011) 192 Cal.App.4th 742, 749-750.) Defendant's motion to strike was filed concurrently with a demurrer. There is no evidence Plaintiffs were prejudiced by the late filing, as they have responded to the motion on the merits, and they have had additional time to confer with opposing counsel based on the Court's enforcement of the meet and confer requirements of Code of Civil Procedure section 435.5 and the continuance of the hearing. Further, the Court has discretion at any time to strike portions of a pleading on appropriate grounds. (Code Civ. Proc. §§ 436(a) and (b).)

Procedural Issue – Declarations Addressing Evidence and Merits of the Claim for Punitive Damages

Defendant filed a declaration of counsel attaching Defendant's own written responses to discovery and excerpts of deposition transcripts taken in the case in support of the motion to strike. (Leary Decl., Exhs. 2-4.) After the Court ordered the parties to complete a compliant meet and confer under Code of Civil Procedure section 435.5, counsel for each side filed supplemental declarations confirming the meet and confer discussion took place but also addressing the parties' competing descriptions of evidence regarding an alleged witness to the accident and to facts relevant to the punitive damages claim.

The Court rules on a motion to strike in the same manner as a demurrer. (Code Civ. Proc. § 437; *Blakemore v. Superior Court* (2005) 129 Cal.App.4th 36, 53.) The Court does not consider this evidence in ruling on the demurrer. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, court does not consider "the substance of declarations, matter not subject to judicial notice, or documents judicially noticed but not accepted for the truth of their contents. [Citations omitted.]"]; *Williams v. Southern California Gas Co.* (2009) 176 Cal. App. 4th 591, 600 ["[A] court ruling on a general demurrer is not empowered to 'ascertain whether the facts stated [in the complaint] are true or untrue.' [Citation omitted.],"] holding trial court could not draw inferences from discovery responses in sustaining a demurrer based on the untruthfulness of the allegations of the complaint]; *Richtek USA, Inc. v. uPI Semiconductor Corp.* (2015) 242 Cal.App.4th 651, 660 [demurrer hearing cannot be turned into contested evidentiary hearing].)

Legal Standards Applicable to Motion to Strike Punitive Damages

The Court, on motion by a party or "at any time in its discretion, and upon terms it deems proper," may strike allegations that are "irrelevant, false or improper matter" or any portion of a pleading "not drawn . . . in conformity with the laws of this state." (Code Civ. Proc. §§ 436(a) and (b).) Like a demurrer, the grounds for a motion to strike must appear on the face of the pleading or be based on a matter subject to judicial notice. (Code Civ. Proc. § 437.) "A motion to strike, like a demurrer, challenges the legal sufficiency of the complaint's allegations, which are assumed to be true." (*Blakemore v. Superior Court* (2005) 129 Cal.App.4th 36, 53 [citing *Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255].)

The standards for alleging a right to punitive damages are set forth in Civil Code section 3294 and the case law construing it, which require more than mere conclusory allegations of willful, malicious, or

oppressive conduct. Under Civil Code section 3294, punitive damages may be awarded in "an action for the breach of an obligation not arising from contract" where Plaintiff proves the "defendant has been guilty of oppression, fraud, or malice." (Civ. Code § 3294(a).) "Malice" is defined as conduct "intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code § 3294(c)(1) [emphasis added].)

Civil Code section 3294 was amended in 1987 to add the requirement that conduct be "despicable" to support an award of punitive damages based on malice or oppression, unless the complaint alleges an intent to injure the plaintiff. (See *Lackner v. North* (2006) 135 Cal.App.4th 1188, 1211; Stats.1987, c. 1498, § 5, p. 5780.) The California Supreme Court explained:

[T]he statute's reference to "despicable" conduct seems to represent a new substantive limitation on punitive damage awards. Used in its ordinary sense, the adjective "despicable" is a powerful term that refers to circumstances that are "base," "vile," or "contemptible." (4 Oxford English Dict. (2d ed. 1989) p. 529.) As amended to include this word, the statute plainly indicates that absent an intent to injure the plaintiff, "malice" requires more than a "willful and conscious" disregard of the plaintiffs' interests. The additional component of "despicable conduct" must be found.

(*College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725.) (See also *Lackner v. North, supra*, 135 Cal.App.4th at 1209 ["The adjective 'despicable' connotes conduct that is ' . . . so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people.' [Citations, internal quotations omitted.]".])

"Punitive or exemplary damages are remedies available to a party who can plead and prove the facts and circumstances [set forth in Civil Code section 3294.] . . . [Citations omitted.]" (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 163-164.) A motion to strike is properly granted when a complaint fails to allege facts to state a *prima facie* claim for punitive damages under the standards of the statute. (*Turman v. Turning Point of Cent. California, Inc.* (2010) 191 Cal.App.4th 53, 63.) Alleging an intentional tort alone is not enough to support a claim for punitive damages: "Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim." (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166 [emphasis added, citing *G. D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 29].) Conclusory allegations parroting the language of the statute are not enough for a punitive damages claim to survive a motion to strike. (*Blegen v. Superior Court* (1981) 125 Cal.App.3d 959, 963 ["Pleading in the language of the statute is acceptable provided that sufficient facts are pleaded to support the allegations. [Citation omitted; emphasis added.] The terms themselves are conclusory, however." (Emphasis added.)).) (See also *Lackner v. North, supra*, 135 Cal. App. 4th at 1210 ["Punitive damages are proper only when the tortious conduct rises to levels of extreme indifference to the plaintiff's rights, a level which decent citizens should not have to tolerate" (Emphasis added.)].)

It is in the Court's discretion under Code of Civil Procedure section 436 whether to strike portions of the complaint. (Code Civ. Proc. § 436; *Clements v. T. R. Bechtel Co.* (1954) 43 Cal.2d 227, 242; *Colden*

v. Broadway State Bank (1936) 11 Cal.App.2d 428, 429.)

Analysis

In their opposition to the motion, Plaintiffs rely on "malice" as the basis for their claim for punitive damages, and specifically the alternative definition of malice based on "despicable conduct which is carried on by the defendant with a willful and conscious disregarding of the rights or safety of others." (Opp. p. 4, ll. 18-27.) They argue that, notwithstanding the language of Civil Code section 3294(c)(1) defining malice to require both "a willful and conscious disregard of the rights or safety of others" rising to the level of "despicable" conduct, recklessness is sufficient. To support this position, they rely on a California Supreme Court decision addressing the elements of a cause of action for intentional infliction of emotion distress, not the statutory requirements for imposing punitive damages. (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 905-906.) The Court finds the decision inapposite and unpersuasive on the issue presented by the motion to strike.

Plaintiffs also rely on a decision of the Ninth Circuit Bankruptcy Appellate Panel in which the panel summarized the history of Civil Code section 3294 and concluded that "conscious disregard within the meaning of CC § 3294 is consistent with reckless conduct." (*In re Plyam* (9th Cir. BAP 2015) 530 B.R. 456, 465-468.) Decisions of the lower federal courts interpreting California law are nonbinding and at most persuasive authority on matters of California substantive law. (*T.H. v. Novartis Pharmaceuticals Corp.* (2017) 4 Cal.5th 145, 175; *Beverage v. Apple, Inc.* (2024) 101 Cal.App.5th 736, 756, fn. 6.) The Court is bound to follow controlling published California case authority. (*Auto Equity Sales, Inc. v. Superior Court* (1962) 57 Cal.2d 450, 455-456; *ZF Micro Devices, Inc. v. TAT Capital Partners, Ltd.* (2016) 5 Cal.App.5th 69, 92.) The *Plyam* decision has never been cited or relied on by any reported California decision.

Plaintiffs make the conclusory allegation that Defendant "recklessly" operated his vehicle in a manner that caused it "to collide with Plaintiff's vehicle." (Compl. 2nd C/A ¶ 2.) They allege they were injured, but the nature and extent of their injuries are described in only generic terms. They allege they sustained "physical pain, mental suffering, loss of enjoyment of life, disfigurement, physical impairment, inconvenience, grief, anxiety, humiliation, and emotional distress," they had to seek "medical care and treatment," on information and belief, "they will require further medical care and therapy," and they were "injured in their health, strength and activity, sustaining injuries to various parts of their bodies and injuries to their nervous system, and various other injuries to their person, including loss of capacity for the enjoyment of life, all of which have caused and will continue to cause Plaintiffs great mental and physical pain and suffering." (Compl. 2nd C/A ¶¶ 2-4.)

Plaintiffs allege two particular facts to support their claim for punitive damages based on Defendant's conduct. They allege Defendant "was operating his vehicle while intoxicated and/or impaired." (Compl. 2nd C/A ¶ 6.) They also allege that Defendant "fled the scene of the crash after it occurred." (Compl. 2nd C/A ¶ 8.) They do not allege this was a "hit and run" accident, or that Defendant did not stop after the accident, but only vaguely that he left the scene of the accident "after it occurred."

The *Plyam* decision cites and highlights the California Supreme Court's decision in *Taylor v. Superior Court* (1979) 24 Cal. 3d 890. In that case, the California Supreme Court concluded that driving a motor vehicle while under the influence of alcohol "may constitute an act of 'malice' under section 3294 if performed under circumstances which disclose a conscious disregard of the probable dangerous

consequences." (*Id.* at 892 [emphasis added].) The complaint in *Taylor* included detailed factual allegations of defendant's multiple prior drunk driving arrests and convictions, defendant's prior serious car accident driving while intoxicated, defendant's status on probation under orders not to drive for six hours after consuming alcohol, defendant's job which involved transporting alcoholic beverages, and defendant's consumption of alcohol while he was driving when the accident occurred. (*Id.* at 893.)

In another drunk driving case after *Taylor*, *Dawes v. Superior Court* (1980) 111 Cal.App.3d 82, decided after *Taylor*, the Court found the complaint alleged facts sufficient to support a claim for punitive damages against an intoxicated driver who killed a bicyclist. (*Id.* at 86.) The plaintiff in *Dawes* alleged that the defendant not only drove after drinking but drove in a reckless manner at an excessive speed under circumstances when there was a significant risk of injury to pedestrians and bicyclists because of crowded traffic conditions. The Court found those additional facts distinguished the case from "ordinary" drunk driving, because plaintiff "set forth specific facts that reasonably give rise to an inference of a conscious disregard of safety and probable injury to others on the part of defendant [']to support a claim of malice or oppression under Civil Code § 3294.' " (*Id.* at 89-90 [emphasis added].) "The risk of injury to others from ordinary driving while intoxicated is certainly foreseeable, but it is not necessarily probable." (*Id.* at 89 [emphasis added].) Notably, *Taylor* and *Dawes* were both decided before the 1987 amendment to Civil Code section 3294 to add the requirement that the conduct be "despicable."

Accepting the allegations as true, even if driving while intoxicated and "fleeing" the scene after the accident occurred is reckless conduct sufficient to meet the "willful and conscious disregard" requirement of malice, the Court does not find those two facts alone, the only specific facts alleged in addition to Plaintiffs' conclusory allegations in the language of the punitive damages statute or conclusory characterization of Defendant as "reckless," are sufficient to meet the requirement that the conduct be "despicable" under the amended version of Civil Code section 3294 as that term has been interpreted by the California Supreme Court in *College Park*.

Plaintiffs' opposition ignores the "despicable" requirement of Civil Code section 3294 as amended in 1987, even if driving while intoxicated and leaving at some undefined point in time after the accident occurred constitutes "willful and conscious disregard" of the safety of others. The case law requires specific facts to be pled to meet the facts and circumstances required under the standards of the punitive damages statute. (*Grieves, supra*, 157 Cal.App.3d at 163-164, 166; *Blegen, supra*, 125 Cal.App.3d at 963; *Lackner, supra*, 135 Cal. App. 4th at 1210.) While Plaintiffs may not have to "outline the entirety of their case" in the FAC (Opp. p. 11, ll. 20-21), they do have to plead sufficient facts and circumstances to state a claim for the punitive damages they seek in the FAC. (*Grieves, supra*, 157 Cal.App.3d at 163-164.)

Conclusion and Ruling

Defendant's motion to strike is **GRANTED IN ITS ENTIRETY**. In their opposition, Plaintiffs do not request leave to amend if the motion to strike were granted. The ruling is **WITHOUT PREJUDICE** to Plaintiffs' making a motion for leave to amend if they possess, or later obtain through discovery, additional facts they can allege specifically to support a claim for punitive damages under the standards of Civil Code section 3294 and the case law.